

ComplianceCheck

Pay-as-you-go Compliance Assessments for Indian SMEs

Food Business Compliance Assessment Report

FSSAI, GST, Fire Safety & Labour Law Compliance
Restaurant & Food Service Business

Prepared For

Sample Enterprises Pvt Ltd

Maharashtra | Manufacturing

Employees: 51-100

Assessment Date: 25 July 2026

35%

Overall Compliance Score

Executive Summary

35%

Overall Compliance Score

Risk Level

Critical Risk

Penalty Exposure

Severe

Category-wise Compliance

Category	Score	Compliance
Food Safety (FSSAI)	33%	3/9
GST & Taxation	33%	1/3
Fire Safety	50%	2/4
Labour Compliance	33%	2/6
Liquor & Excise	33%	1/3
Business Registration	0%	0/2
Health & Hygiene	100%	1/1
Special Permits	33%	1/3

Key Findings

- * Total Compliance Score: 35%
- * Risk Level: Critical Risk
- * Areas Requiring Attention: 20 High Priority Items
- * Compliant Areas: 11 areas meet requirements

HIGH Priority Action Items

Address immediately to mitigate compliance risks.

HIGH

FSSAI

FSSAI License Display at Premises

"FSS (Licensing and Registration) Regulations 2011, Regulation 2.1.5"

Steps to Address:

1. Print FSSAI license on A4 or larger
2. Display prominently at main entrance or cash counter
3. Ensure 14-digit license number is clearly visible
4. Include validity dates on display

Deadline: Continuous compliance

Penalty: Rs.25,000-1 lakh fine. Warning notice first, then prosecution.

Ref: FSS (Licensing and Registration) Regulations 2011, Regulation 2.1.5

HIGH

FSSAI

FSSAI License Validity Management

"FSS (Licensing and Registration) Regulations 2011"

Steps to Address:

1. Check license expiry date immediately
2. If <30 days remaining: Apply for renewal now
3. If expired <90 days: Apply with late fee
4. If expired >90 days: Fresh application required

Deadline: Renewal 30 days before expiry

Penalty: Late renewal: Rs.100/day. After 90 days: 3x annual fee. After 180 days: License cancelled.

Ref: FSS (Licensing and Registration) Regulations 2011

HIGH

FSSAI

FSSAI Hygiene Rating Certification

"FSSAI Hygiene Rating Guidelines 2019"

Steps to Address:

1. Self-assess using FSSAI hygiene checklist
2. Address gaps in food safety practices
3. Register on FSSAI Hygiene Rating portal
4. Choose FSSAI-recognized auditing agency
5. Schedule and complete hygiene audit

Deadline: Voluntary but increasingly required by aggregators

Penalty: No direct penalty. Lower visibility on Swiggy/Zomato. Required for some municipal permits.

Ref: FSSAI Hygiene Rating Guidelines 2019

HIGH

FSSAI

Food Safety Records and Documentation

"FSS (Licensing and Registration) Regulations 2011, Schedule 4"

Steps to Address:

1. Implement daily temperature log for refrigerators/freezers
2. Create cleaning and sanitation schedule
3. Maintain pest control service records
4. Document supplier details with FSSAI numbers
5. Keep stock rotation records (FIFO)

Deadline: Daily maintenance, retain for 2 years

Penalty: Rs.1-2 lakh fine. May affect license renewal.

Ref: FSS (Licensing and Registration) Regulations 2011, Schedule 4

HIGH

FSSAI

Potable Water Meeting BIS Standards

"FSS Act 2006; BIS IS 10500:2012 (Drinking Water)"

Steps to Address:

1. Arrange water quality test from NABL-accredited lab
2. Test parameters as per IS 10500:2012
3. Install RO/UV purification if water fails standards
4. Maintain water treatment equipment
5. Test ice-making water separately

Deadline: Ongoing - test twice annually minimum

Penalty: Using unsafe water: Rs.5-10 lakh fine. Criminal liability if illness caused.

Ref: FSS Act 2006; BIS IS 10500:2012 (Drinking Water)

HIGH

FSSAI

Proper Food Storage with Temperature Control

"FSS (Licensing and Registration) Regulations 2011, Schedule 4"

Steps to Address:

1. Install temperature monitoring devices in all refrigerators/freezers
2. Maintain cold storage at 0-5C for perishables
3. Maintain frozen storage at -18C or below
4. Implement FIFO (First In First Out) stock rotation
5. Store raw and cooked food separately

Deadline: Continuous compliance

Penalty: Unsafe food storage: Rs.2-5 lakh fine. License suspension for repeat violations.

Ref: FSS (Licensing and Registration) Regulations 2011, Schedule 4

HIGH

GST

Timely GST Return Filing

"CGST Act 2017, Sections 37-39"

Steps to Address:

1. File all pending returns with late fees
2. Reconcile sales data with GSTR-1
3. Ensure GSTR-3B matches GSTR-1
4. Set up automated reminders for filing dates

Deadline: GSTR-1: 11th, GSTR-3B: 20th of following month

Penalty: Late fee: Rs.50/day (Rs.20 for NIL). Interest: 18% p.a. on tax due.

Ref: CGST Act 2017, Sections 37-39

HIGH

GST

GST-Compliant Tax Invoice

"CGST Rules 2017, Rule 46"

Steps to Address:

1. Update POS/billing system with correct format
2. Include: GSTIN, Invoice number, Date, HSN/SAC code
3. Show tax breakup (CGST+SGST or IGST)
4. Customer GSTIN for B2B transactions

Deadline: Every transaction

Penalty: Rs.25,000 per incorrect invoice. ITC denial to customers.

Ref: CGST Rules 2017, Rule 46

HIGH

Fire Safety

Fire Extinguishers Installation and Maintenance

"NBC 2016, Part 4; IS 15683"

Steps to Address:

1. Install ABC type extinguishers (1 per 200 sq.ft or as per NOC)
2. Kitchen: K-class or CO2 for cooking oil fires
3. Mount at accessible height (1-1.5m from floor)
4. Ensure pressure gauge in green zone
5. Annual inspection and refill by licensed agency

Deadline: Before Fire NOC inspection; Annual refill

Penalty: NOC rejection/cancellation. Rs.10,000-50,000 fine.

Ref: NBC 2016, Part 4; IS 15683

HIGH

Fire Safety

Emergency Exit Signage and Evacuation Plan

"NBC 2016, Part 4; IS 12349"

Steps to Address:

1. Install green EXIT signs at all exit points
2. Use photoluminescent or LED-lit signs
3. Ensure visibility from 30m distance
4. Install directional arrows along escape routes
5. Display evacuation plan near main entrance

Deadline: Before Fire NOC inspection

Penalty: Rs.10,000-50,000 fine. Critical in evacuation failure.

Ref: NBC 2016, Part 4; IS 12349

HIGH

Labor Compliance

EPFO Registration

"EPF & MP Act 1952, Section 1(3)"

Steps to Address:

1. Register on EPFO Unified Portal
2. Obtain Establishment Code Number
3. Register all eligible employees (earning up to Rs.15,000/month basic + DA)
4. Submit Form 5A within 15 days of registration

Deadline: Within 1 month of crossing 20 employees threshold

Penalty: Up to Rs.25,000 fine and 1 year imprisonment for non-registration

Ref: EPF & MP Act 1952, Section 1(3)

HIGH

Labor_Compliance

Monthly PF Contribution Deposit

"EPF Scheme 1952 - Para 38"

Steps to Address:

1. Calculate arrears with 12% interest
2. File ECR on Unified Portal
3. Pay via online challan
4. Set up auto-reminders for 10th of each month

Deadline: 15th of following month

Penalty: 12% p.a. interest + damages up to 100% of arrears

Ref: EPF Scheme 1952 - Para 38

HIGH

Labor_Compliance

Monthly ESI Contribution Deposit

"ESI Act 1948, Section 39(5)"

Steps to Address:

1. Calculate arrears: Employee (0.75%) + Employer (3.25%) = 4%
2. Log into ESIC Portal and generate challan
3. Pay via online banking
4. Update monthly contribution details

Deadline: 15th of following month

Penalty: Interest at 12% p.a. + damages up to 25%

Ref: ESI Act 1948, Section 39(5)

HIGH

Labor_Compliance

Gratuity Liability Tracking

"Payment of Gratuity Act 1972, Section 4"

Steps to Address:

1. Calculate liability: $(15 \times \text{Last salary} \times \text{Years}) / 26$
2. Create gratuity register for employees with 4+ years
3. Maximum ceiling: Rs.20,00,000
4. Include provision in annual financial statements

Deadline: Continuous tracking; payment within 30 days of becoming due

Penalty: Interest at 10% p.a. + up to 6 months imprisonment

Ref: Payment of Gratuity Act 1972, Section 4

HIGH

Liquor_Excise

State Excise Liquor License

"State Excise Acts (varies by state)"

Steps to Address:

1. Apply to State Excise Commissioner
2. Obtain NOC from Police, Fire, Municipal authorities
3. Submit premises layout showing bar area
4. Pay license fee (varies: Rs.5L-25L by state)
5. Display license prominently at bar

Deadline: Before serving alcohol

Penalty: Rs.1-10 lakh fine + 3 months to 5 years imprisonment. Establishment closure.

Ref: State Excise Acts (varies by state)

HIGH

Liquor_Excise

Daily Liquor Stock Register

"State Excise Rules"

Steps to Address:

1. Maintain daily opening and closing stock
2. Record all purchases with permit numbers
3. Document wastage and breakage
4. Reconcile physical stock weekly
5. Keep register for minimum 3 years

Deadline: Daily maintenance

Penalty: Rs.10,000-50,000 fine. License suspension for repeat violations.

Ref: State Excise Rules

HIGH

Business_Registration

Shop & Establishment Registration

"State Shops and Establishments Acts"

Steps to Address:

1. Apply online on state labour department portal
2. Submit: PAN, Aadhaar, rent agreement, photos
3. Pay registration fee (typically Rs.500-5,000)
4. Obtain registration certificate
5. Display certificate at premises

Deadline: Within 30 days of commencement

Penalty: Rs.1,000-10,000 fine depending on state. Daily penalty for continued default.

Ref: State Shops and Establishments Acts

HIGH

Business_Registration

Municipal Trade License

"Municipal Corporation Acts; State Municipal Laws"

Steps to Address:

1. Apply at municipal corporation office/portal
2. Submit: ID proof, address proof, rent agreement, NOCs
3. Pay fee based on area and nature of business
4. Inspection by municipal officials
5. Obtain and display trade license

Deadline: Before commencing operations

Penalty: Rs.500-25,000 fine depending on city. Sealing of premises for continued default.

Ref: Municipal Corporation Acts; State Municipal Laws

HIGH

Special Permits

Late Night Operation Permit

"State Police Acts; Municipal Bylaws"

Steps to Address:

1. Apply to Police Commissioner or Municipal Commissioner
2. Submit character certificate of owner/manager
3. Obtain neighbor NOCs if required
4. Install CCTV with 30-day recording
5. Pay annual permit fee

Deadline: Before operating past standard hours (typically 11 PM)

Penalty: Rs.5,000-25,000 fine. Permit cancellation. Criminal proceedings.

HIGH

Special_Permits

Music/Entertainment License

"PPL/IPRS licensing; State Entertainment Tax Acts"

Steps to Address:

1. Obtain PPL license for recorded music
2. Obtain IPRS license for live performances
3. Apply via respective portals
4. Pay annual fee based on seating capacity
5. Maintain playlist records

Deadline: Before playing music publicly

Penalty: Rs.20,000-2 lakh per song copyright infringement. Criminal prosecution.

Ref: PPL/IPRS licensing; State Entertainment Tax Acts

Compliant Areas (11)

These areas meet FSSAI, GST, Fire Safety & Labour Law Compliance requirements based on your responses

FSSAI

- [Y] Valid FSSAI License/Registration
- [Y] FOSTAC Trained Food Safety Supervisor
- [Y] FSSAI-Licensed Supplier Traceability

GST

- [Y] GST Registration

Fire_Safety

- [Y] Fire NOC from State Fire Department
- [Y] Fire Drill and Emergency Preparedness

Labor_Compliance

- [Y] ESIC Registration
- [Y] Internal Complaints Committee (ICC) Constitution

Liquor_Excise

- [Y] Liquor Service Hour Compliance

Health_Hygiene

- [Y] Health Trade License for Food Business

Special_Permits

- [Y] Outdoor/Footpath Seating Permit

Next Steps & Resources

Recommended Timeline

Period	Action
Immediate	Address HIGH priority items
Short-term (30-60 days)	Complete MEDIUM priority items
Ongoing	Implement LOW priority improvements
Annual	Re-assessment and compliance review

Government Resources

FSSAI FoSCoS Portal

<https://foscoss.fssai.gov.in>

FOSTAC Training

<https://fostac.fssai.gov.in>

FSSAI Hygiene Rating

<https://hygiene.fssai.gov.in>

GST Portal

<https://gst.gov.in>

EPFO Portal

<https://unifiedportal-emp.epfindia.gov.in>

ESIC Portal

<https://www.esic.gov.in>

Ministry of Labour

<https://labour.gov.in>

Applicable Legislation

- * Food Safety and Standards Act, 2006
- * FSS (Licensing and Registration) Regulations, 2011
- * FSS (Packaging and Labeling) Regulations, 2011
- * Central Goods and Services Tax Act, 2017
- * Employees Provident Funds and Miscellaneous Provisions Act, 1952
- * Employees State Insurance Act, 1948
- * Payment of Gratuity Act, 1972
- * Sexual Harassment of Women at Workplace (POSH) Act, 2013
- * State Shops and Establishments Acts
- * State Excise Acts (for liquor service)
- * National Building Code 2016 (Fire Safety)

Key Compliance Deadlines

- * FSSAI Annual Return (Form D-1): May 31 annually
- * FSSAI License Renewal: 30 days before expiry
- * EPF/ESI Monthly Deposit: 15th of following month
- * GST Returns (GSTR-1, GSTR-3B): 11th/20th monthly
- * Fire NOC Renewal: Annually (state-specific)

- * Trade License Renewal: March 31 annually
- * POSH Annual Report: January 31

Schedule Your Next Assessment

We recommend re-assessing your compliance status every 6-12 months. Visit compliancecheck.co.in to schedule your next assessment.

Disclaimer: This report is generated based on your responses and should not be construed as legal advice. Please consult with a legal professional for specific compliance guidance.

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